JIANGMEI MINERALS (PVT) LTD

Versus

JOSED MINING SYNDICATE

AND

OFFICER IN CHARGE, ZIMBABWE REPUBLIC POLICE, CID MINERALS N.O

AND

THE COMMISSIONER GENERAL OF THE ZIMBABWE REPUBLIC POLICE

AND

THE PROVINCIAL MINING DIRECTOR OF THE MIDLANDS PROVINCE N.O

AND

MINISTER OF MINES & MINING DEVELOPMENT N.O

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 24 and 27 OCTOBER 2025

Urgent Chamber application

W. Jiti, for the applicant
M Masama, for first respondent
S Chukwa with Ms Kanhukamwe, for second to the fifth respondents

NDUNA J: - A litigant that approaches the court for relief on an urgent basis must comply with the rules of court. *Rule 60(4)* reads;

> "Where a chamber application is accompanied by a certificate from a legal practitioner in sub rule (4)(b) to the effect that the matter is urgent, giving reasons for its urgency, the registrar shall immediately submit it to the duty judge, handling urgent applications who shall consider the papers forthwith".

The consideration that shall be done by a judge is to see to it that the matter requires urgent solution, and shall call the parties to appear before him for the matter to be determined.

In every affidavit filed in support of any application under paragraph (a) of this subrule, the applicant must set forth explicitly the circumstances which is averred render the matter urgent and the reasons why the applicant claims that applicant could not be afforded substantial redress at a hearing in due course.

The rule requires two legs to be present before urgency can properly be founded, namely; first, the urgency should not be self-created and secondly, it must provide reasons why substantial relief cannot be achieved in due course. The importance of these provisions is that the procedure set out in the rule is not there for the mere taking. In *East Rock Trading 7 (Pty) Ltd and another v Eagle Valley Granite (Pty) Ltd and others [2011] ZAGPJHC 196 para 6* the court stated that:

> 'The import thereof is that the procedure set out in rule [6(12)] is not there for taking. An applicant has to set forth explicitly the circumstances which he avers render the matter urgent. More importantly, the Applicant must state the reasons why he claims that he cannot be afforded substantial redress at a hearing in due course. <u>The question of whether a matter is sufficiently urgent to be enrolled and heard as an urgent application is underpinned by the issue of absence of substantial redress in an application in due course.</u> The rules allow the court to come to the assistance of a litigant because if the latter were to wait for the normal course laid down by the rules it will not obtain substantial redress.'

The import of this is that the test for urgency begins and ends with whether the applicant can obtain substantial redress in due course. It means that a matter will be urgent if the applicant can demonstrate, with facts, that the applicant requires immediate assistance from the court, and that if his application is not heard on an urgent basis that any order that he might later be granted will by then no longer be capable of providing him with the legal protection he requires.

In a nutshell, and in this case, the applicant avers that the first respondent has encroached into his claim and if he is left, the respondent is likely to get the minerals that are due to be gotten by the applicant. He therefore seeks relief from the court which has the effect of stopping the applicant from entering into his claim and mining therefrom.

As regards to the harm an applicant may suffer where the matter is not dealt with on an urgent basis, V de Wit in '*The correct approach to determining urgency' (2021) 21(2) Without Prejudice 12 at 13* wrote as follows:

> 'harm does not found urgency. Rather, harm is a mere precondition to urgency. Where no harm has, is, or will be suffered, no application may be brought, since there would be no reason for a court to hear the matter. However, where harm is present, an application to address the harm will not necessarily be urgent. It will only be urgent if the applicant cannot obtain redress for that harm in due course. Thus: harm is an antecedent for urgency, but urgency is not a consequence of harm.'

Secondly in *Roets N.O. and another v SB Guarantee Company (RF) (Pty) Ltd and others [2022] ZAGPJHC 754 para 26* regarding the explanation that the application must furnish as to why the matter is not urgent and cannot be brought be in the ordinary course, held that:

> 'urgency which is self-created in a sense that an applicant sits on its laurels or take its time to bring an urgent application can on its own lead to a decision that a matter is struck off the roll. It would of course depend on the explanation provided but if the explanation is lacking and does not cover the full period from when it was realised, or should have been realised, that urgent relief should be obtained. If this criteria to strike a matter from the roll is not available to a court, a court would be compelled to deal with an urgent application where for instance nothing was forthcoming for weeks or months and a day or two before an event was going to take place a party who wants to stay that event can approach a court and argue that if an order is not immediately granted such party would not obtain substantial redress in due course. If this is the approach to be adopted by a court there exist no reason why any explanation for the delay should be provided at all. An applicant only have to show that should interim relief not be granted it will suffer irreparable harm.'

It is therefore clear from the fore going that an applicant in an urgent application must demonstrate fully that the relief he is seeking is due to him and that if it is not urgently provided, he will suffer irreparable harm.

Urgency in court is not taken lightly. To convince the court that a matter deserves urgent attention, the applicant must demonstrate the following: -

a) Imminent Harm: The applicant will suffer irreparable harm if the matter is not heard immediately.
b) Lack of Alternative Remedies: There is no other satisfactory remedy available in the ordinary course, and,
c) Clear Justification: The circumstances must clearly justify the need to bypass the usual court process.

In this case the applicant is a miner and so is the first respondent. The applicant avers that the respondent is getting into his claim and is deriving some gold ore. Once that is done, and the ore taken or mined, it is lost and will never be recovered. He therefore seeks the help of the court to interdict the first respondent so that the first respondent does not continue to access his mining area.

Assuming what is being alleged is true, the party has shown the urgency in the matter and it shall be heard accordingly.

The plaintiff or applicant has approached the court on an urgent basis seeking the following relief: -

> 1. Pending the final determination of this matter, the 1st Respondent, its assignees, employees and or/agents are hereby interdicted and restrained from conducting any mining activities within the boundaries of the Applicant's mining area defined by special grant 9841.
>
> 2. The 1st Respondent, its assignees, employees and or/agents are be and is hereby barred from entering and/or engaging in any mining activities at Applicant's mining location an area approximately 17.10 Hectares situate with RA 900 in the mining District of Midlands.
>
> 3. The 2nd Respondent is directed to take all necessary steps to enforce this Order and prevent any unlawful mining activities by the 1st Respondent within the specified area.
>
> 4. The 3rd Respondent shall ensure that appropriate measures are taken to protect the Applicant's mining rights and interests pending the final determination of this application.
>
> **TERMS OF FINAL ORDER SOUGHT**
>
> That you show cause to this Honourable Court why a final order should not be made in the following terms:

1. The Court declares that the Applicant holds valid mining rights under special grant 9841 and that the 1st Respondent's mining activities within the Applicant's designated area are unlawful.

2. The 1st Respondent, its assignees, employees and or/agents are hereby ordered to cease all mining operations within the Applicant's mining area and to remove any equipment and materials used in the illegal mining forthwith.

3. The costs of this application shall be borne by the first Respondent on a higher scale.

The applicant avers that the respondent is encroaching into his mining claim and deriving benefit therefrom. What is clear is that the first respondent is also claiming to ownership of the disputed claims. What it means is therefore that the applicant is entitled to the relief sought because as per its maps, the respondent has some activity in its area.

As set out in the case of *MDCT-2 & Ors v Timveous & Ors SC9/22*, the essential elements of a final interdict are outlined as a clear right, irreparable actually committed or reasonably approached harm and the absence of an alternative remedy.

A finding has already been made that the applicant has a clear right over the mining claims in question. Therefore, any interference with that right is unlawful. In this case the applicant has deposed to his affidavit which depositions show that there is an on-going interference with his rights in the mining claim. He is mining across the demarcation lines. Of note is the mining locations on the maps relied upon by the applicant. There is what can be termed a free lying piece of land such if each of the two miners observe their demarcations properly there would be no need to interfere with each other. This is what seems to have not been observed by the first Respondent. He has overshot the boundaries. And the applicant is simply saying he should be stopped from interfering with the applicant’s mining activities. The mining activities are clearly within the applicant’s mining area, hence the need for protection.

It is therefore the finding of this court that the interim order for interdict made in this application is sound. It is accordingly granted as prayed for.

ORDER

1. Pending the final determination of this matter, the 1st Respondent, its assignees, employees and or/agents are hereby interdicted and restrained from conducting any

mining activities within the boundaries of the Applicant's mining area defined by special grant 9841.

2. The 1st Respondent, its assignees, employees and or/agents are be and is hereby barred from entering and/or engaging in any mining activities at Applicant's mining location an area approximately 17.10 Hectares situate with RA 900 in the mining District of Midlands.

3. The 2nd Respondent is directed to take all necessary steps to enforce this Order and prevent any unlawful mining activities by the 1st Respondent within the specified area.

4. The 3rd Respondent shall ensure that appropriate measures are taken to protect the Applicant's mining rights and interests pending the final determination of this application.

Jiti Law Chambers, for the applicant
Mangwana and Partners, for the 1st respondent
Civil Division of the Attorney General, for the 2nd to the 5th respondents